

Don Lee v. Bank of America, N.A., et al.

20CV44796

DEMURRER TO THE FIRST AMENDED COMPLAINT

Bank of America, N.A. (BANA) demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (c), to the First Amended Complaint (FAC) on the grounds that another action is pending in the Court of Appeal on the same facts and issues. BANA further demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e), to each cause of action purportedly set forth in the FAC on the grounds that Plaintiff fails to allege facts sufficient to state a claim against BANA.

The Court rules on BANA's request for judicial notice as follows.

Request Nos. 1 and 3: GRANTED. The Court takes judicial notice of the Complaint filed in this action, and the Complaint filed in case No. 17CV42098, but not for the truth of the matters asserted therein.

Request Nos. 2, and 4-12: DENIED. The respective subject matters of these request numbers are not relevant to the Court's resolution of the issues raised by the demurrer.

The Court finds that the allegations of the FAC involve the same parties and the same subject matter as the Complaint filed in *Don Lee v. Bank of America, N.A., et al.*, Case Number 17CV42098 in this Court (098 Case). (Compare FAC with the Complaint in 098 Case attached as Exhibit D to the FAC.) Plaintiff acknowledges as much through his Opposition to this demurrer. (See Opposition at 16:4-6.) Plaintiff alleges in the FAC, and concedes through his Opposition, that the 098 Case is ongoing. (See FAC at ¶ 19, Opposition at 16:5-6.)

"It is well settled that the law abhors vexatious and unnecessary litigation wherein several lawsuits are brought involving the same parties and subject matter. (Citation.) An objection to a complaint on the basis that a substantially similar lawsuit is pending is properly raised by demurrer (Citation.), provided the defect appears on the face of the pleading or from judicially noticed facts." (*Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-92.) In this case, because the Complaint in the 098 Case is both attached as Exhibit D to the FAC, and a proper subject of BANA's request for judicial notice, the defects appear both in the pleading *and* through judicially noticed facts.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

Based on the nature of the defects – the identity of the parties and subject matter involved in this action and the 098 Case – the Court finds no reasonable possibility that Plaintiff can cure the defects by amendment. Plaintiff appears to concede the point by failing to address it through his Opposition.

Based on the foregoing, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The clerk shall provide notice of this ruling to the parties forthwith. BANA to prepare a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.